24STCV19221 24STCV19221

County: los-angeles

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Case Number: 24STCV19221 Hearing Date: June 29, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June
29, 2026 TRIAL DATE: Not set

CASE: Strategic Funding Source, Inc. d/b/a Kapitus v. Kidney Care
Institute, Inc., et al.

CASE NO.: 24STCV19221

PLAINTIFF'S
MOTION FOR SUMMARY JUDGMENT OR, IN THE

ALTERNATIVE,
SUMMARY ADJUDICATION AGAINST DEFENDANTS

MOVING PARTY: Plaintiff
Strategic Funding Source, Inc. d/b/a Kapitus

RESPONDING PARTY: No opposition

Plaintiff Strategic Funding Source, Inc. d/b/a Kapitus ("Plaintiff" or "SFS") entered into a loan agreement with defendant Kidney Care Institute, Inc. ("KCI") as the borrower, and defendant Victor Anthony ("Anthony") as the guarantor of KCI's obligations. Under the terms of the agreement, SFS provided funds to KCI in the sum of $115,100 and KCI promised to repay

$166,895, plus fees and costs as authorized by the agreement. KCI defaulted and failed to repay the full amount. Anthony likewise failed to pay the sums due. There is now due and owing the sum of $138,406, including default fees, interest, attorney's fees, and costs of suit.

I. INTRODUCTION

On July 30, 2024, Plaintiff filed a verified Complaint against Defendants for breach of contract and breach of guaranty.

On September 12, 2024, Defendants filed a verified Answer to the Complaint.

On March 20, 2026, Plaintiff filed this motion for summary judgment, or in the alternative, summary adjudication. Plaintiff also requests an award of prejudgment interest.

The motion is unopposed.

II. LEGAL STANDARD

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."¿ (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c(c).)¿ A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action.¿ (Code Civ. Proc., § 437c(p)(1); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)¿ The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue or a defense thereto.¿ (Code Civ. Proc., § 437c(p)(1).)¿

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Courts "liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.”¿ (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)¿ However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary adjudication as a matter of law.¿¿ (Code Civ. Proc., § 437c(c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)¿¿

III. DISCUSSION

Plaintiff moves for summary judgment, or alternatively, summary adjudication on its breach of contract claims, and an award of prejudgment interest. The court addresses these matters in turn.

A.
Summary Judgment

The elements of a cause of action for breach of contract are: (1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to plaintiff.¿ (Coles v. Glaser (2016) 2 Cal.App.5th 384, 391.)

Here, Plaintiff submits undisputed evidence to establish each element of a breach of contract claim against KCI. Plaintiff entered into a valid business loan agreement with KCI. (Plaintiff’s Separate Statement of Undisputed Material Facts (UMF) 1.) Plaintiff performed all obligations under the agreement. (UMF 8.) KCI defaulted on the payments due under the agreement and failed to repay the full amount. (UMF 6, 9.) KCI’s failure to repay the full amount due resulted in principal damages of $138,406 to Plaintiff. (UMF 10.)

Plaintiff also submits undisputed evidence to establish each element of a breach of contract claim against Anthony. Incorporated into the agreement with KCI was a guaranty executed by Anthony. (UMF 12, 14-15.) Plaintiff performed all its obligations under the agreement. (UMF 8, 16.) KCI breached the agreement. (UMF, 6, 9, 17.) Upon KCI’s default, Anthony’s obligations under the guaranty became due. (UMF 14-15.) However, Anthony failed to perform under the

Guaranty. (UMF 18.) Plaintiff was damaged in the principal sum of $138.406. (UMF 19.)

B.

Prejudgment Interest

Plaintiff requests an award of prejudgment interest from the date of breach – August 4, 2023, to the date of judgment, at $37.92 per day.

Civil Code section 3287 provides, in pertinent part, as follows: “A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day.”¿ (Civ. Code, § 3287(a).)¿¿¿¿

¿¿

The test for recovery of prejudgment interest is whether the defendant actually knows the amount owed or could have computed the amount from reasonably available information.¿ (See Children’s Hospital & Medical Center v. Bonta (2002) 97 Cal.App.4th 740, 774.)¿ Prejudgment interest is not authorized only in those cases where the amount of damage—as distinguished from liability—depends on the judicial determination of conflicting evidence and is not ascertainable from truthful data supplied by the claimants to the debtors.¿ (Id.) “Damages are deemed certain or capable of being made certain within the provisions of subdivision (a) of § 3287 where there is essentially no dispute between the parties concerning the basis of computation of damages if any are recoverable but where their dispute centers on the issue of liability giving rise to damage.”¿ (Esgro Central, Inc. v. General Insurance Co. (1971) 20 Cal.App.3d 1054, 1060.)¿¿

Here, Plaintiff is entitled to award of prejudgment interest. Plaintiff establishes that Defendants breached the loan agreement and guaranty on August 4, 2023. (UMF 9, 17.) At the time of breach, Defendants owed the total amount of $138,406.00, which consists of the outstanding principal amount due and default fees. (UMF 10, 10.) The sum is certain. Further, Defendants, having not filed an opposition, do not dispute the basis for the computation

of damages. Prejudgment interest of 10%
on the damages sought of $138,406.00 is warranted.

IV. CONCLUSION

Based on the foregoing, the unopposed motion for summary judgment is GRANTED.

Plaintiff is ordered to give notice.

Dated: June 29, 2026

Brock T. Hammond

Judge of the Superior Court